

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARINA NELSON,

Petitioner

VS.

BEN NELSON,

Respondent

) Case Number: FDI-24-800674

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Marina Nelson (Mother) and Respondent Ben Nelson (Father). The minor children subject to this proceeding are Zara Nelson (DOB: 04/15/11) and Xio Nelson (DOB: 02/18/16).
- 2) On June 11, 2026, Father filed an ex parte application, which was granted by the Court. The Court set the matter for hearing on an Order Shortening Time. In particular, the Court granted Father temporary sole legal and physical custody of both children and, pending hearing, ordered Mother to have no contact with the minor children, or in the alternative professionally supervised visitation. The Court further ordered Father to serve his Request for Order on Mother no later than June 18, 2026.
- 3) On June 30, 2026, the Court received communication from Father that he intended to drop his hearing from calendar. The Court also notes that it does not appear that Father has served his moving paperwork.

B. Findings and Order

- 1) Given that the moving party has requested that the matter be dropped and given that it appears the moving documents have not been served, the Court hereby drops the matter from calendar.
- 2) The Court vacates its child custody and visitation orders that were issued on June 11, 2026. Any and all prior orders for custody and visitation issued before June 11, 2026 shall become the operative orders of the Court.
- 3) Counsel for moving party shall prepare the Findings and Order After Hearing.
- 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).